

HB 2170 -- CHILD PASSENGER RESTRAINT SYSTEMS

SPONSOR: Sassmann

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Children and Families by a vote of 9 to 1. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 9 to 0.

Currently, all children under four years of age and children under eight who weigh less than 40 pounds must be secured in a child passenger restraint system.

Children who are at least four years of age, but under eight years of age, and who weigh between 40 and 80 pounds, but who are less than four feet, nine inches tall, must be secured in an appropriate child passenger restraint system or booster seat.

Children under 16 weighing at least 80 pounds or at least four feet, nine inches tall must wear a seatbelt.

This bill instead requires the following:

(1) Children under three years of age must be secured in a rear-facing child passenger restraint system. When the child reaches the highest rear-facing weight or height allowed by the manufacturer of the restraint system, the child can be secured in a forward-facing child passenger restraint system.

(2) Children under four years of age must be secured in a child passenger restraint system.

(3) Children weighing less than 40 pounds who are under eight years of age must be secured in a child passenger restraint system.

(4) Children weighing 40 pounds or more who are at least four years of age but under eight years of age must be secured in a child passenger restraint system or booster seat.

(5) Children weighing at least 80 pounds and who are at least four feet, nine inches tall or children who are at least eight years of age, must wear a seatbelt.

Currently, there is an exception for when a driver is transporting children in the immediate family and there are more children than seating positions. In that situation, the children

not in a child passenger restraint system will sit in the area behind the front seat of the motor vehicle, if one exists.

This bill removes the exception.

PROPOSERS: Supporters say that motivation for this bill came from the Department of Transportation and this is not the first time it has been heard. Studies have shown that minor changes can create safer environments for children on highways. This bill removes an old exception that allows a child to travel unrestrained but allows for certain height and weight exceptions. Supporters want to ensure the safety of children.

Testifying in person for the bill were Representative Sassmann; Missouri College of Emergency Physicians; Arnie Dienoff; Lillian Hinkson, Missouri Department of Transportation (MODOT); Patrick Flesch, MODOT; Missouri State Medical Association; and Missouri Association of Osteopathic Physicians and Surgeons.

OPPOSERS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.